



SOLE SOURCE JUSTIFICATION

Simplified Acquisition Form

This form is required by NMCARS Part 5213 for all contracts below SAT (\$250k) whenever full and open competition is restricted.

Part I – Procurement Information (Requiring Activity Completes)

In accordance with [FAR 13.106-1\(b\)\(1\)\(i\)](#) Contracting Officers may solicit from only one source for purchases not exceeding SAT (\$250,000, per FAR 2.1) if they determine the circumstances indicate only one source is reasonably available.

Note: FAR Part 6 does not apply to contracts awarded using the simplified acquisition procedures of Part 13. However, see 13.501 for requirements pertaining to sole source acquisitions of commercial products or commercial services, under subpart 13.5. When following FAR Subpart 13.5, the NAVAIR J&A template must be used instead.

PID #:			
Total IGE Amount	\$37,044.72	Delivery or PoP End Date:	05/30/2026
Requirement Description: The MH-60R/S Mission Software Fleet Support Team (MS FST) has been tasked to procure and maintain software. The software LynxOS is currently being used by the Original Equipment Manufacturer (OEM), Lockheed Martin. LynxOS v7.0.0 and v7.3.1 Real-Time Operating System (RTOS) are currently being used for the newer releases of the MH-60R/S software. Both real-time operating systems are part of the (FY26) software support services renewals.			

Part II – Sole Source Rationale (Requiring Activity Completes)

Basis for Restricting Competition	Instructions for Use	Instructions for Rationale
☐ Urgency	If choosing this option, an Urgency Statement must be included with the PID package. This basis is appropriate when the Government would be seriously injured unless the agency is permitted to limit the number of sources solicited. The serious consequences resulting from the routine processing time of full competition may include but are not limited to disruption to fleet schedule, work-stoppage, or exhaustion of on-hand, mission critical supplies or services.	Summarize the circumstances outlined in the Urgency Statement and explain how this particular vendor is the only source who can meet the Government's need in the required timeframe.
☐ Restrictive Data Rights	Choose if the source has established proprietary/ownership rights, limited rights in data, patent rights, copyrights or rights to software data and documentation.	Explain what rights are restricted, why the restrictive rights make the required item or service available from only one source, and why another company could not satisfy the Government's need.
☒ Exclusive Licensing Agreements	Choose if the item or service is only available from the OEM, <u>or</u> there is only one authorized distributor or technical representative holding a licensing agreement from the OEM.	Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM. OR Identify the distributor(s)/authorized technical representative(s) for the item or service. Provide

	Note: If there is more than one distributor / authorized technical representative for an OEM part, then select Brand Name instead.	evidence of the exclusive licensing agreement as an attachment to this document; examples include an email or signed letter from OEM to licensee or Government which outlines the agreement.
☐ Brand-Name	Choose if <u>only</u> a brand-name product, or feature of a brand-name product can properly fulfill the requirement. Brand-name items are available from more than one source including authorized distributors, authorized technical representatives for the Original Equipment Manufacturers (OEM), or commercial suppliers. This basis is appropriate when the particular brand name, product, or feature is essential to the Government's requirements, and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet, the agency's needs.	Describe how the brand-name product or feature is essential to the Government's requirement and explain why a brand-name or equal basis cannot meet the need (see FAR 11.104). Summarize how market research shows similar products could not meet the need as is or be modified to do so. Where a single source is identified to provide a portion of a purchase because that portion of the purchase specifies a particular brand-name item, the rationale must state that it only applies to the portion of the purchase requiring the brand-name item.
☐ Brand-Name or Equal	Choose if there are additional sources besides the brand-name item that could provide the most relevant physical, functional or performance characteristic(s). Consider any firm requirement for the product to be a relevant characteristic.	Describe how the brand-name item meets the Government's requirements. Give a general description of the relevant characteristic(s) that an "equal to" item must meet to be acceptable for award.
☐ 8(a) Sole Source Direct Award	Choose if the requirement has been identified for a sole source to an 8(a)-company following the alternative procedures for direct award made under the Partnership Agreement (PA) between the SBA and DoD in accordance with 10 U.S.C. 3204(a)(5).	Provide a thorough explanation why the vendor is the only 8(a) company capable of meeting the requirements or otherwise explain why competition is not in the Government's best interest.
☐ Other	Choose if none of the other options apply to the requirement (e.g. Industrial Mobilization, International Agreement).	Provide a thorough explanation why competition is not in the Government's best interest.
Rationale for Selected Basis: Lynx Software Technologies, Inc. is the Original Equipment Manufacturer (OEM) and sole developer of LynxOS, and as they do not authorize any resellers, they are the only source capable of providing the required proprietary software updates and support services.		

Requiring Activity Certification

I certify that the facts and representations under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

Requirement Owner Name

Signature

Date

Contracting Officer's Approval

Contracting Officer Name

Signature

Date